

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-28

WAY INTERGLOBAL NETWORK LLC.
COMPLAINANT,

V.
SHENZHEN UNIFELIX SCM LIMITED
RESPONDENT.

RESPONDENT'S VERIFIED ANSWER TO VERIFIED COMPLAINT

Respondent Shenzhen Unifelix SCM Limited (hereinafter “Shenzhen”), by its attorneys, Roberts & Kehagiaras LLP, hereby submits this Answer to the Verified Complaint of Complainant, Way Interglobal Network, LLC (hereinafter “WAY”) incorrectly alleging certain violations of the Shipping Act of 1984, 46 U.S.C. § 40101, et. seq. (the “Shipping Act”) and regulations promulgated thereunder.

PARTIES

1. Respondent Shenzhen is without knowledge or information sufficient to form a belief as to the truth or veracity of the allegations contained in paragraph 1 of the Verified Complaint and therefore denies the same.

2. Respondent Shenzhen admits the allegations is paragraph 2 of the complaint.

JURISDICTION

3. Respondent Shenzhen defers all questions of law to the Commission. To the extent a further response is required, Respondent denies the allegations set forth in Paragraph 3 of the Verified Complaint.

4. Respondent Shenzhen denies the allegations set forth in Paragraph 4 of the Verified Complaint.

5. Respondent Shenzhen admits the allegations set forth in Paragraph 5 of the Verified Complaint.

6. Respondent Shenzhen denies the allegations set forth in Paragraph 6 of the Verified Complaint.

7. Respondent Shenzhen denies the allegations set forth in Paragraph 7 of the Verified Complaint.

FACTUAL ALLEGATIONS

8. Respondent Shenzhen admits that it entered into a service contract with Way, states that the service contract speaks for itself, and denies the remaining allegations set forth in Paragraph 8 of the Verified Complaint.

9. Respondent Shenzhen denies the allegations set forth in Paragraph 9 of the Verified Complaint.

10. Respondent Shenzhen denies the allegations set forth in Paragraph 10 of the Verified Complaint.

11. Respondent Shenzhen denies the allegations set forth in Paragraph 11 of the Verified Complaint.

12. Respondent Shenzhen denies the allegations set forth in Paragraph 12 of the Verified Complaint.

13. Respondent Shenzhen admits the allegations set forth in Paragraph 13 of the Verified Complaint.

14. Respondent Shenzhen denies the allegations set forth in Paragraph 14 of the Verified Complaint.

15. Respondent Shenzhen denies the allegations set forth in Paragraph 15 of the Verified Complaint.

16. Respondent Shenzhen denies the allegations set forth in Paragraph 16 of the Verified Complaint.

17. Respondent Shenzhen denies the allegations set forth in Paragraph 17 of the Verified Complaint.

18. Respondent Shenzhen denies the allegations set forth in Paragraph 18 of the Verified Complaint.

19. Respondent Shenzhen denies the allegations set forth in Paragraph 19 of the Verified Complaint.

20. Respondent Shenzhen denies the allegations set forth in Paragraph 20 of the Verified Complaint.

21. Respondent Shenzhen denies the allegations set forth in Paragraph 21 of the Verified Complaint.

22. Respondent Shenzhen denies the allegations set forth in Paragraph 22 of the Verified Complaint.

23. Respondent Shenzhen denies the allegations set forth in Paragraph 23 of the Verified Complaint.

24. Respondent Shenzhen denies the allegations set forth in Paragraph 24 of the Verified Complaint.

25. Respondent Shenzhen denies the allegations set forth in Paragraph 25 of the Verified Complaint.

26. In response to paragraph 26, Respondent Shenzhen respectfully requests an oral hearing. Should the hearing be held, Respondent requests a hearing

be held at the Federal Maritime Commission, 800 N. Capitol St., NW, Washington DC 20573-001.

AFFIRMATIVE DEFENSES

27. The Complaint herein must be dismissed for the failure of WAY to comply with all conditions precedent to the maintaining of proceedings before this Commission.

28. The allegations set forth in the Verified Complaint lack a meritorious factual basis.

29. The Verified Complaint has not alleged the essential elements of a claim under 46U.S.C. § 41102(c).

30. Respondent Shenzhen's practices were neither unjust nor unreasonable.

31. The Verified Complaint fails to state a claim against Shenzhen upon which relief can be granted. The Complaint herein must be dismissed for the failure of WAY to state a claim for which this Commission can grant relief, and the matter must be remanded to the U.S. District Court.

32. Complainant has not suffered any damages proximately caused by Respondent's alleged acts.

33. In the alternative, and without waiver of any other defenses or affirmative defenses, and upon information and belief, Complainant has failed to mitigate its damages.

34. In the alternative, and without waiver of any other defenses or affirmative defenses, and upon information and belief, Complainant's damages, if any, were caused in whole or in part by Complainant's own conduct.

35. Complainant's injury, if any, was a result solely of its own errors and omissions, and/or the errors and omissions of its own customers/other vendors, for whom Shenzhen has no direct or vicarious responsibility, fault, or culpability.

36. Upon information and belief, Complainant's claims are barred in whole or in part by reason of ratification, agreement, or consent to the alleged conduct by Complainant and/or its members.

37. Complainant's claim for damages is not the proper basis for the recovery of reparations.

39. The Complainant is not entitled to recover any special damages not plead. That includes, but is not limited to attorney's fees, costs, and expenses associated with this litigation.

40. This Commission lacks jurisdiction over the parties' dispute, which should properly be heard by the District Court.

41. To the extent Respondent performed the services alleged in the Verified Complaint, Respondent exercised reasonable care at all times in connection with the goods in question. Respondent is not responsible for any loss or damage caused by any cause or event which could not be avoided and the consequence which could not be prevented by the exercise of reasonable diligence.

42. The loss or damage alleged in the Verified Complaint, if any, was caused by an act or default of Complainant for which Respondent is not responsible or liable.

43. The loss or damage alleged in the Verified Complaint, if any, was caused by intervening and superseding causes for which Respondent is not responsible or liable.

44. The loss or damage alleged in the Verified Complaint, if any, resulted from a cause arising without the fault and privity of Respondent and without the fault or neglect of its agents or servants.

45. Complainant's claims are barred by reason of its own negligent, willful conduct, culpable conduct, acquiescence, recklessness, misrepresentation, consent, approval and ratification.

46. Complainant's claims are barred, in whole or in part, by the doctrines of laches, waiver and estoppel.

47. To the extent applicable, Respondent is entitled to all rights, defenses, limitations of liability, and immunities contained in any applicable convention, statute, regulation, or law, whether foreign or domestic, that may apply to the claims asserted in the Verified Complaint.

48. To the extent Respondent performed any of the acts set forth in the Verified Complaint, all such acts/conduct were authorized by and/or requested by Complainant.

49. Complainant was aware of all decisions and assumed all risks associated with each decision alleged in the Verified Complaint.

50. Shenzhen reserves the right to amend this Verified Answer to raise any additional defenses or affirmative defenses that may arise in the course of this proceeding.

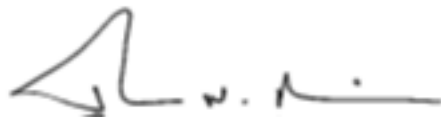
WHEREFORE Respondent Shenzhen Unifelix SCM Limited respectfully demands:

1. Dismissal of this proceeding and remand to the U.S. District Court for full adjudication;
2. All costs and attorneys' fees incurred by WAY in connection with this proceeding.

Dated this 20th day of January 2023

Respectfully submitted,

By:



Theodore H. Adkinson
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100 W. Broadway, Suite 660
Long Beach, CA 90802
Attorneys for Respondent
Shenzhen Unifelix SCM Limited

CERTIFICATE OF SERVICE

I hereby certify that on the 20th day of January 2023, I served the foregoing **RESPONDENT'S ANSWER TO COMPLAINT** on the parties listed below by e-mailing.

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Attorney for Complainant, Way Interglobal Network, LLC

By:



Employee of ROBERTS & KEHAGIARAS
LLP

Verification

Rena Huang hereby declares under penalty of perjury of the laws of the United States of America as follows:

I am an Operation Manager of Respondent Shenzhen Unifelix SCM Limited. I have read the foregoing Verified Answer and know the contents thereof and the same is true to my knowledge except as to matters therein stated to be alleged on information and belief, and as to those matters, I believe them to be true.

Dated this 20th day of January 2023

By: _____


Rena Huang
Operations Manager,
Shenzhen Unifelix SCM Limited